Mutual Release

SETTLEMENT AND RELEASE OF CLAIMS

This Mutual Release (the **"Release"**) is made on _____ between _____ (**"Party A"**) and _____ (**"Party B"**). Each is a "side".

A. The sides have a disagreement about the matter described in section 1 (the **"Matter"**).

B. They wish to settle it fully, without admitting that they did anything wrong, and to release each other from claims about it.

1. The Matter

1.1 The Matter is:

_____

1.2 Nothing in this Release is an admission by either side of fault or liability. Each says that it signs only to avoid the cost and trouble of continuing the disagreement.

2. Settlement terms

2.1 The terms of the settlement are:

_____

2.2 Any payment is: _____. Each side bears its own costs unless it says otherwise above.

3. The release

3.1 In return for the promises in this Release, each side, for itself and for those who claim through it, releases the other, and the other's owners, officers, employees, agents, insurers, successors and assigns, from every claim, demand, debt and cause of action, known or unknown, that it has or may have against the other up to the date of this Release, that arises out of the Matter.

3.2 Each side understands that this includes claims it does not know about, and that it might later learn facts different from those it now believes. It accepts that risk and agrees that this Release will stay in force regardless.

4. What is not released

4.1 This Release does not release a side's duty to carry out this Release; a claim that cannot be released by law; a claim that arises after the date of this Release; or any matter that is not the Matter.

5. Promises each side makes

5.1 Each side promises that it has not given or sold any claim covered by this Release to anyone else, that it has the authority to sign it, and that it has had the chance to take advice and read it carefully, and signs of its own free will.

5.2 Each side will not start or continue a court case or similar proceeding against the other about the Matter. If it does, this Release is a defense to it.

5.3 Each side will keep the terms of this Release private, except to its advisers, insurers and tax authorities, and as the law requires. _____

6. Time to think

6.1 Each side has had at least _____ to consider this Release before signing, and may sign sooner if it chooses to. Each side may take advice from anyone it chooses, and the cost is its own.

6.2 Each side confirms that it understands what it is giving up, that no one has pressured it to sign, and that it is not relying on any statement or promise that is not written in this Release.

7. Governing law

7.1 This document, and any dispute arising out of it, is governed by the laws of the State of _____, without regard to its rules about conflicts of laws.

8. General

8.1 **The whole agreement.** This Release is the entire agreement between the sides on its subject. It replaces everything said or written before about the same subject, and neither side has relied on any promise that is not written here.

8.2 **Changes in writing.** A change to this Release is effective only if it is in writing and signed by both sides. An email exchange does not change it unless each side expressly says that it is a change and signs it electronically.

8.3 **Assignment.** Neither side may transfer its rights or duties under this Release without the other's written consent, which will not be unreasonably withheld. A side may transfer it without consent to a successor that takes over all of its business, if it gives notice.

8.4 **If part of it fails.** If a court finds that any part of this Release cannot be enforced, that part is limited to the smallest extent needed and the rest stays in effect.

8.5 **Counterparts and electronic signatures.** This Release may be signed in separate copies, which together are one document. A signature made electronically, including by typing, drawing or selecting a signature, is as effective as a handwritten one, and each side agrees to sign and keep this Release in electronic form.

Signatures

By signing below, each party agrees to this document and confirms that the person signing has the authority to do so.

PARTY A

PRINTED NAME

SIGNATURE

DATE

PARTY B

PRINTED NAME

SIGNATURE

DATE

WITNESS (OPTIONAL)

PRINTED NAME

SIGNATURE

DATE